

ORDER SHEET
LAHORE HIGH COURT, BAHAWALPUR BENCH,
BAHAWALPUR.
JUDICIAL DEPARTMENT

ICA No.23 of 2018/BWP
Government of Pakistan
through Secretary Ministry of Defence, etc.
versus
District Bar Association, Rahim Yar Khan, etc.

<i>Sr. No. of order/ Proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
	26.01.2022	Syed Zulfiqar Haider Shah, Assistant Attorney General for Pakistan. Mr. Muhammad Farhan Masud, Advocate for appellants No.2 to 7. Ch. Shahid Mahmood, Assistant Advocate General, Punjab for respondents No.4 to 7. Mr. Shahzad Asghar Khan, Advocate/Legal Advisor Zila Council for respondent No.8. Respondent No. 1 to 3 <i>ex-parte</i>. The appellants have challenged order dated 16.01.2018 passed in W.P.No.4981 of 2013/BWP by the learned Single Judge in Chambers whereby the writ petition filed by respondents No.1 to 3 has been disposed of as having borne fruit. 2. The learned Law Officer on behalf of appellant No. 1 and the learned counsel for the appellants No.2 to 7 state that the learned Single Judge in Chambers has passed the impugned order dated 16.01.2018 on the basis of comments submitted by the Deputy Commissioner concerned whereas the said Deputy Commissioner had no authority to represent the present appellants and the stance of the appellants has not been considered while disposing of the afore-referred writ petition and they have been condemned unheard through a non-speaking order. 3. After earlier being represented through counsel, the respondents no. 1 to 3 have remained unrepresented

for many previous dates despite notices and today also no one has entered appearance on their behalf despite their service through special messenger; therefore, they are proceeded against *ex-parte*. The remaining respondents, who are official respondents have not wholeheartedly contested the claim of the appellants.

4. In order to appreciate the above contentions, the operative part of the impugned order is reproduced below:

“This petition has been filed with the following prayer:

"Further prayed that all the subsequent proceedings taken by the respondents for transfer of the Mela ground/land in question in favour of the military authorities/respondents No.1 to 8 may kindly be declared as illegal and of no legal effect, void, ab initio, mala fide and without lawful authority.

2. Comments have been submitted by the respondent/ Deputy Commissioner. Relevant portion is reproduced hereunder:

"a) Funds worth Rs.24.4 million (which were deposited by Army Authorities for transfer of land) may be allowed to be refunded back for which letter has already been written to the Senior Member Board of Revenue Punjab.

b) Funds worth Rs.40.00 million may be provided to District Government, Rahim Yar Khan in the budget for the financial year 2016-2017 for payment of Pakistan Army on account of improvement of infrastructure, to proceed further in the matter and to fulfill our part of commitment.

c) In pursuance of the decision taken in meeting held at GHQ on 25.09.2006 Pakistan Army has identified 1195 Acres private land near/adjacent to Bahadar Cantt. Rahimyarkhan. The land acquisition process is under progress. The land has been notified under section 4(1) of the Land Acquisition Act, 1894 and prices have been assessed by DPAC. The acquisition cost has also been deposited by Military State Officer Hyderabad on 28.01.2014. The land Acquisition Collector has been directed to take necessary steps for expeditious completion of acquisition process for the facilitation of Pakistan Army.

3. In view of these circumstances, this petition bears fruit, disposed of accordingly.”

5. We have gone through the impugned order and found that the learned Single Judge reproduced only a portion of the prayer of the petitioners in the writ petition without making reference to the orders dated 25.09.2006

and 24.06.2011 that had been challenged or reproducing the remaining prayers and while relying only on a small portion of the comments filed by the Deputy Commissioner concerned without reference to context has disposed of the afore-referred writ petition by observing, “*this petition bears fruit, disposed of accordingly.*” whereas the version of the appellants, who are the Federal Government, through Ministry of Defence, Military Estate Officer, Officers of armed forces and other Military Authorities to whom land had been transferred for defence purposes, has neither been recorded nor been considered, despite the fact that they have been adversely affected by the impugned order and no reason for passing such order has been noted, whereas it is settled by now that the court as well as the public functionaries are required to pass speaking orders to redress grievances of citizens, with reasons manifesting by itself that the court applied its mind to issues involved in the case, which has not been done in the present case, hence the impugned order lacks the said basic ingredients of a valid order. Reliance is placed on judgments reported as Secretary Ministry of Health, Government of Pakistan, Islamabad and others versus Dr. Rehana Hameed and others (2010 PLC (CS) 1075 (SC) = 2010 SCMR 511), Fasih-ud-Din Khan and others versus Government of Punjab and others (2010 SCMR 1778), Messrs United Woolen Mills Ltd. Workers’ Union versus Messrs United Woolen Mills Ltd. (2010 PLC (CS) 246 (SC) = 2010 SCMR 1475), Government of Sindh through Land Acquisition Officer and others versus Muhammad Juman and another (2009 SCMR 1407). Even otherwise, as the matter was required to be decided in accordance with law therefore it was required to be determined through a speaking order providing reasons

for the conclusion reached in the matter. Besides aforementioned judgments, reliance is also placed on the principles laid down in Modi Industries Ltd. versus State of Uttar Pradesh and others (AIR 1994 SC 536).

6. It has also been observed meticulously by us that the learned Single Judge had although reproduced the comments filed by the Deputy Commissioner but the facts of the case, stance and contentions of the parties, the remaining prayer of the petition, grounds raised by them and the points on which they were building and advancing their case have not been taken into consideration while disposing of the constitution petition and as such the said order is a vague and non-speaking order, which does not disclose that what was actually considered and decided while disposing of the constitution petition. In similar circumstances, the Hon'ble Supreme Court of Pakistan in a case reported as Muhammad Iqbal Chaudhry and another v. Secretary, Ministry of Industries and Production, Government of Pakistan and others (PLD 2004 SC 413), while setting aside the impugned order and remanding the same for decision afresh, has opined as under:-

“It may be noted that the forums seized with the judicial matters are required to pass such a speaking judgment that it should give an impression to readers that the legal and factual aspects of the case which were raised before it for the purpose of decision have been considered and decided in the light of recognized principles of law on the subject instead of disposing of in slipshod manner.”

7. It is settled by now that learned presiding officer cognizant of the matter had to not only consider that what was the matter pending for decision before it but had also to determine the points required to be considered for reaching a final conclusion in the matter, which has not been done in the present case. It has been laid down by

the Hon'ble Supreme Court of Pakistan in the case reported as Mollah Ejahar Ali versus Government of East Pakistan and others (PLD 1970 SC 173) that a judicial order must be a speaking order manifesting by itself that the Court has applied its mind to the resolution of issues involved for their proper adjudication. The ultimate result may be reached by a laborious effort, but if the final order does not bear an imprint of that effort and on the contrary disclosed arbitrariness of thought and action, the feeling with the painful results that justice has neither been done nor seems to have been done is inescapable.

8. In the present case the court has by reproducing merely a portion of prayer clause and comments of the Deputy Commissioner in piecemeal observed that the petition has borne fruit without disclosing what has actually been decided, whereas a court is required to pass a clear and speaking order and litigant should not be pushed to realm of guesswork, where in an uncertain situation, he was unable to proceed and did not know in what manner he had to comply with orders of the court or what had been decided in his favour and where an order is ambiguous, the same is not sustainable. Reliance is placed on the case of Wasal Khan and others versus Dr. Niaz Ali Khan (2016 SCMR 40).

9. Besides there is another aspect of the matter that while deciding the case the point of view of the parties had to be considered by providing them with an opportunity of hearing which being a principle of natural justice is an integral part of every statute. But the appellants have not been provided with a right of proper hearing before the matter was decided against them, therefore to that extent the impugned order was not sustainable. Reliance in this behalf may be placed on the judgment reported as Abdul Majeed Zafar and others

versus Governor of the Punjab through Chief Secretary and others (2007 SCMR 330) wherein it is provided that the principles of natural justice, unless prohibited by wording of statute, must be read in each and every statute. It was further observed by the Court that the impugned order was not a speaking one lacking detailed reasons as required under law to ascertain what had compelled the authority to pass the same and consequently the impugned order was set aside with the directions to Authority to pass a speaking order afresh with reasons after affording opportunity of hearing to all concerned.

10. For what has been discussed above, it is clear that the impugned order lacks the ingredients of a valid order, as it is neither a speaking order nor discloses what has been decided and has been passed without providing opportunity of hearing to necessary parties to advance their respective stance having been passed without observation of principles of natural justice and is not based on proper appreciation of facts of the case and law on the subject; hence the same is not sustainable.

11. In view of above, this appeal is **allowed** with the result that the impugned order dated 16.01.2018 is set aside; consequently the afore-referred writ petition shall be deemed to be pending adjudication which shall be decided afresh on its own merits after providing reasonable opportunity of hearing to all the parties concerned.

(Sultan Tanvir Ahmad)
Judge

(Muzamil Akhtar Shabir)
Judge

Approved for reporting.